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Study Notes

THE OCCUPATIONAL SAFETY, HEALTH AND WORKING CONDITIONS CODE, 2020

Part 1

INTRODUCTION

- The Occupational Safety, Health and Working Conditions Code “the Code” is a **law related to labour reforms**.
- It is a Code to **consolidate and amend the laws regulating the occupational safety, health and working conditions of the persons employed in an establishment**.



- **Section 3** of the Code lays down that it **shall not apply to the offices of the**:
 - ✓ Central Government,
 - ✓ State Government and
 - ✓ any ship of war of any nationality
 - the Code **shall apply in case of**:
 - contract labour employed through contractor in the offices of the Central Government or of the State Government, where, the Central Government or, as the case may be, the State Government is the principal employer.

SOME IMPORTANT DEFINITIONS SECTION 2

- Section 2 (b) **"adult"** means a person who has completed his eighteenth year of age.
- Section 2 (c) **"agent"** when used in relation to a mine, means every person, whether appointed as such or not, who, acting or purporting to act on behalf of the owner, takes part in the management, control, supervision or direction of such mine or of any part thereof.
- Section 2 (j) **"cargo"** includes anything carried or to be carried in a ship or other vessel, or Vehicle.
- Section 2 (m) **"contract labour"** means a worker is considered employed in or in connection with the work of an establishment when hired through a contractor, regardless of the principal employer's knowledge. This definition includes inter-State migrant workers. However, it excludes workers regularly employed by the contractor for any activity of their establishment, where their employment follows mutually agreed-upon standards, including engagement on a permanent basis. These workers receive periodic increments in pay, social security coverage, and other welfare benefits as per the prevailing laws. Notably, part-time employees are not included in this exclusion.

- Section 2 (n) "**contractor**", in relation to an establishment, means a person, who— (i) undertakes to produce a given result for the establishment, other than a mere supply of goods or articles of manufacture to such establishment, through contract labour; or (ii) supplies contract labour for any work of the establishment as mere human resource, and includes a sub-contractor.
- Section 2 (o) "**controlled industry**" means any industry the control of which by the Central Government has been declared under any Central Act in the public interest.
- Section 2 (p) "**core activity of an establishment**" means an essential or necessary activity in an establishment refers to any function for which the establishment is established. This includes activities that are vital or required for the main activity. However, certain activities are not considered essential or necessary if the establishment is not primarily set up for them. These non-essential activities include: (a) Sanitation works, such as sweeping, cleaning, dusting, and waste collection and disposal, (b) Watch and ward services, including security services, (c) Canteen and catering services, (d) Loading and unloading operations, (e) Running hospitals, educational and training institutions, guest houses, clubs, etc., if they serve as support services, (f) Courier services that function as support services, (g) Civil and other constructional works, including maintenance, (h) Gardening and maintenance of lawns and similar activities, (i) Housekeeping and laundry services, if they are support services, (j) Transport services, including ambulance services, (j) Any activity of intermittent nature, even if it constitutes a core activity of the establishment.
- Section 2 (q) "**day**" means a period of twenty-four hours beginning at mid-night.
- Section 2 (s) "**dock work**" means any work in or within the vicinity of any port in connection with, or required for, or incidental to, the loading, unloading, movement or storage of cargoes into or from ship or other vessel, port, dock, storage place or landing place, and includes— (i) work in connection with the preparation of ships or other vessels for receipt or discharge of cargoes or leaving port; (ii) all repairing and maintenance processes connected with any hold, tank structure or lifting machinery or any other storage area on board the ship or in the docks; and (iii) chipping, painting or cleaning of any hold, tank, structure or lifting machinery or any other storage area on board the ship or in the docks.
- Section 2 (t) "**employee**" means an individual (excluding an apprentice under the Apprentices Act, 1961) who is engaged on wages to perform various types of work, whether skilled, semi-skilled, unskilled, manual, operational, supervisory, managerial, administrative, technical, clerical, or any other, regardless of whether the terms of employment are explicitly stated or implied. This definition also includes a person declared as an employee by the appropriate Government, excluding members of the Armed Forces of the Union. Employee in a Mine is someone who works in various capacities, including managerial roles or under appointment by the owner, agent, or manager of the mine. This definition covers individuals working for wages or not, and it includes various activities such as: Mining operations, including handling and transport of minerals, Operations related to the development of the mine, excluding certain construction activities, Operating, servicing, maintaining, or repairing machinery used in or about the mine, Loading minerals for dispatch, Office work within the mine, Welfare, health, sanitary, or

conservancy services required under the applicable laws, excluding the residential area, Any work preparatory or incidental to, or connected with, mining operations.

- Section 2 (u) "**employer**" means a person who employs, whether directly or through any person, or on his behalf, or on behalf of any person, one or more employees in his establishment and where the establishment is carried on by any Department of the Central Government or the State Government, the authority specified, by the head of such Department, in this behalf or where no authority, is so specified, the head of the Department and in relation to an establishment carried on by a local authority, the Chief Executive of that authority, and includes,— (i) in relation to an establishment which is a factory, the occupier of the factory; (ii) in relation to mine, the owner of the mine, agent or manager referred to in section 67; (iii) in relation to any other establishment, the person who, or the authority which has ultimate control over the affairs of the establishment and where said affairs are entrusted to a manager or managing director, such manager or managing director; (iv) contractor; and (v) legal representative of a deceased employer.
- Section 2 (v) "**establishment**" means (i) a place where any industry, trade, business, manufacturing or occupation is carried on in which ten or more workers are employed; or (ii) motor transport undertaking, newspaper establishment, audio-video production, building and other construction work or plantation, in which ten or more workers are employed; or (iii) factory, for the purpose of Chapter II, in which ten or more workers are employed, notwithstanding the threshold of workers provided in clause (w); or (iv) a mine or port or vicinity of port where dock work is carried out: Provided that in sub-clauses (i) and (ii), the threshold of worker specified therein shall not be applicable in case of such establishment or class of establishments, in which such hazardous or life threatening activity is being carried on, as may be notified by the Central Government: Provided further that notwithstanding any threshold provided in the definition of factory in clause (w), for the purposes of Chapter II, the establishment specified in sub-clause (i) or sub-clause (ii) or sub-clause (iii) shall be deemed to be the establishment within the meaning of this clause though the number of employees employed are ten or more.
- Section 2 (w) "**factory**" means any premises including the precincts thereof— (i) whereon twenty or more workers are working, or were working on any day of the preceding twelve months, and in any part of which a manufacturing process is being carried on with the aid of power, or is ordinarily so carried on; or (ii) whereon forty or more workers are working, or were working on any day of the preceding twelve months, and in any part of which a manufacturing process is being carried on without the aid of power, or is ordinarily so carried on, but does not include a mobile unit belonging to the armed forces of the Union, railways running shed or a hotel, restaurant or eating place: Provided that where under any law for the time being in force in a State immediately before the commencement of this Code, the number of workers specified is more or less than the number specified in clause (i) or clause (ii), then, the number specified under the law of the State shall prevail in that State till it is amended by the competent Legislature.
 - ✓ For computing the number of workers for the purposes of this clause all the workers (in different groups and relays) in a day shall be taken into account and the mere fact that an Electronic Data Processing Unit or a Computer Unit is

installed in any premises or part thereof, shall not be construed as factory if no manufacturing process is being carried on in such premises or part thereof.

- Section 2 (zc) **"industrial premises"** means any place or premises (not being a private dwelling house), including the precincts thereof, in which or in any part of which any industry, trade, business, occupation or manufacturing is being ordinarily carried on with or without the aid of power and includes a godown attached thereto.
- Section 2 (zd) **"industry"** means any systematic activity carried on by co-operation between an employer and worker (whether such worker is employed by such employer directly or by or through any agency, including a contractor) for the production, supply or distribution of goods or services with a view to satisfy human wants or wishes (not being wants or wishes which are merely spiritual or religious in nature), whether or not,— (i) any capital has been invested for the purpose of carrying on such activity; or (ii) such activity is carried on with a motive to make any gain or profit, but does not include— (a) institutions owned or managed by organisations wholly or substantially engaged in any charitable, social or philanthropic services; or (b) any activity of the appropriate Government relatable to the sovereign functions of the appropriate Government including all the activities carried on by the Departments of the Central Government dealing with defence research, atomic energy and space; or (c) any domestic service; or (d) any other activity as may be notified by the Central Government.
- Section 2 (zg) **"machinery"** means any article or combination of articles assembled, arranged or connected and which is used or intended to be used for converting any form of energy to perform work, or which is used or intended to be used, whether incidental thereto or not, for developing, receiving, storing, containing, confining, transforming, transmitting, transferring or controlling any form of energy.
- Section 2 (zi) **"manufacturing process"** means any process for— (i) making, altering, repairing, ornamenting, finishing, packing, oiling, washing, cleaning, breaking up, demolishing, or otherwise treating or adapting any article or substance with a view to its use, sale, transport, delivery or disposal; or (ii) pumping oil, water, sewage or any other substance; or (iii) generating, transforming or transmitting power; or (iv) composing, printing, printing by letter press, lithography, offset, photogravure screen printing, three Dimensional or four Dimensional printing, prototyping, flexography or other types of printing process or book binding; or (v) constructing, reconstructing, repairing, refitting, finishing or breaking up ships or vessels; or (vi) preserving or storing any article in cold storage; or (vii) such other processes as the Central Government may notify.
- Section 2 (zn) **"motor transport undertaking"** means a motor transport undertaking employing motor transport worker and engaged in carrying passengers or goods or both by road for hire or reward, and includes a private carrier.
- Section 2 (zo) **"motor transport worker"** means a person who is employed in a motor transport undertaking directly or through an agency, whether for wages or not, to work in a professional capacity on a transport vehicle or to attend the duties in connection with the arrival, departure, loading or unloading of such transport vehicle and includes a driver, conductor, cleaner, station staff, line checking staff, booking clerk, cash clerk, depot clerk, time-keeper, watchman or attendant, but does not include any such person— (i) who is employed in a factory; (ii) to whom the provisions of any other law for the time being in

force regulating the conditions of service of persons employed in shops or commercial establishments apply.

- Section 2 (zs) "**occupier**" of a factory means the person who has ultimate control over the affairs of the factory: Provided that— (i) in the case of a firm or other association of individuals, any one of the individual partners or members thereof; (ii) in the case of a company, any one of the directors, except any independent director within the meaning of sub-section (6) of section 149 of the Companies Act, 2013; (iii) in the case of a factory owned or controlled by the Central Government or any State Government, or any local authority, the person or persons appointed to manage the affairs of the factory by the Central Government, the State Government or the local authority or such other authority as may be prescribed by the Central Government, shall be deemed to be the occupier: Provided further that in the case of a ship which is being repaired, or on which maintenance work is being carried out, in a dry dock which is available for hire, the owner of the dock shall be deemed to be the occupier for all purposes except the matters as may be prescribed by the Central Government which are directly related to the condition of ship for which the owner of ship shall be deemed to be the occupier.

REGISTRATION OF CERTAIN ESTABLISHMENTS SECTION 3

- Employers of establishments that come into existence after the commencement of the Code **must submit an electronic application for registration within 60 days**. Late applications are subject to prescribed late fees.
- Upon receiving the registration application, the **registering officer must register the establishment and issue an electronic certificate of registration** within the specified time frame and conditions set by the Central Government.
- If the **registering officer fails to register** the establishment within the prescribed period, the **establishment is automatically deemed registered, and the electronic certificate will be auto-generated**.
- Employers **must notify the registering officer of any changes** in ownership, management, or details of the establishment **within 30 days**. The registration certificate will be amended accordingly.
- If an **establishment closes**, the **employer must inform the registering officer and certify the payment of all worker dues within 30 days**. The officer must remove the establishment from the register and cancel the certificate within 60 days.
- If **registration is obtained by misrepresentation or fraud**, the employer **may face prosecution or the registering officer may revoke the registration**, after providing the employer an opportunity to be heard.
- Employers **without proper registration or who fail to appeal cancellation or revocation cannot employ workers** in the establishment.
- An establishment already registered under other relevant laws will be considered registered under the new Occupational Safety, Health, and Working Conditions Code **upon submitting registration details to the registering officer**.

APPEAL SECTION 4

- Any **person aggrieved by an order** under section 3 **may file an appeal within 30 days** of being informed about the decision.
- The appeal will **be handled by an appellate officer** appointed by the government.
- If the appellate officer is satisfied, **they may accept an appeal even if it is filed after the 30-day period.**
- Upon receiving the appeal, the appellate officer must give the appellant an opportunity to be heard and **dispose of the appeal within 30 days from the date of receipt.**

NOTICE BY EMPLOYER OF COMMENCEMENT AND CESSATION OF OPERATION SECTION 5

- Before starting any business, trade, or construction work in a factory, mine, or other covered establishments, the **employer must notify the appropriate authority with details about the nature of the work.**
- The employer must **also inform the authority when the operation ceases.**
- The **notice or intimation must be given electronically.**

DUTIES OF EMPLOYER AND EMPLOYEES, ETC. SECTION 6

- Every **employer shall:**
 - ✓ ensure workplace is *free from hazards causing injury or occupational disease.*
 - ✓ *comply with occupational safety and health standards, rules, and regulations under this Code.*
 - ✓ *provide free annual health exams or tests as prescribed for specific employees or establishments.*
 - ✓ *maintain a safe and healthy working environment, as far as reasonably practicable.*
 - ✓ *ensure proper disposal of hazardous, toxic, and e-waste.*
 - ✓ *issue appointment letters to employees, if not already done, within three months of the Code's commencement.*
 - ✓ *ensure no charges are levied on employees for maintaining safety and health, including medical examinations.*
 - ✓ *ensure the safety and health of employees, workers, and others on work premises, with or without employer knowledge.*
- The **duties of an employer shall particularly in respect of factory, mines, dock, building or other construction work or plantation include:**
 - ✓ *provide and maintain safe plant and work systems that pose no health risks.*
 - ✓ *ensure safety and health during the use, handling, storage, and transport of articles and substances.*
 - ✓ *provide necessary information, instruction, training, and supervision to ensure employee health and safety.*
 - ✓ *maintain workplaces in a safe condition, with safe access and egress.*
 - ✓ *ensure a safe working environment that promotes employee welfare and is free from health risks.*

DUTIES OF DESIGNERS, MANUFACTURERS, IMPORTERS OR SUPPLIERS SECTION 8

- Every **person who designs, manufactures, imports or supplies** any article for use in any establishment shall:
 - ✓ ensure that the article is designed and constructed in a way that is safe and poses no risk to workers' health when used correctly, as far as reasonably practicable.
 - ✓ carry out or arrange for necessary tests and examinations to ensure the article's safety.
 - ✓ provide sufficient information on how the article should be used safely, including details on design, testing, and necessary safety conditions for workers.
 - ✓ for imported articles, ensure they meet the same safety standards as those made in India. If the standards in the country of origin are higher, the article must meet those higher standards. If no specific standards exist in India, the article must comply with the standards from the country of origin.
- The **designer, manufacturer, importer, or supplier must also:**
 - ✓ comply with any additional duties specified by the Central Government, in consultation with the National Occupational Safety and Health Advisory Board
 - ✓ conduct necessary research to identify and eliminate or minimize health and safety risks related to the article or substance being designed or manufactured for use in a factory.
- Responsibilities **apply only to activities conducted in the course of business and matters under the person's control.**
- **Every person who:**
 - ✓ erects or installs an article in a factory *must ensure it does not pose a risk to health or safety* when used by workers.
 - ✓ manufactures, imports, or supplies a substance for use in a factory *must ensure the substance is not unsafe, conduct necessary tests, and ensure safety information is available in the factory.*
 - ✓ undertakes the manufacture of a substance for use in a factory *must conduct research to identify and reduce health and safety risks* from the substance's manufacture.
- Articles and substances **must not be used in the factory without considering any safety information or advice** provided by the designer, manufacturer, importer, or supplier.

- **"Article"** shall include plant and machinery;
- **"Substance"** means any natural or artificial substance whether in a solid or liquid form or in the form of a gas or vapour; and
- **"Substance for use in any factory"** means such substance, whether or not intended for use by persons working in a factory.

DUTIES OF ARCHITECT, PROJECT ENGINEER AND DESIGNER SECTION 9

- Architects, project engineers, and designers are **responsible for ensuring worker safety and health during the planning stage** of a construction project.

- They **must identify and address potential risks**, including hazards related to structures, processes, and materials used in the project.
- The **design must avoid unsafe practices** that could compromise the health or safety of workers during construction, operation, or execution.
- **Professionals must also consider safety measures** for the ongoing maintenance and upkeep of the building or structure, particularly for hazards notified by the appropriate government.

NOTICE OF CERTAIN ACCIDENT SECTION 10

- **Serious accidents in establishments** (death, significant injury, or inability to work for 48+ hours) must **be reported to relevant authorities** by:
 - ✓ Employer, owner, agent, or manager (for mines).
 - ✓ Employer or manager (for factories or dock work).
 - ✓ Employer (for plantations, construction, or other establishments).
- Reporting **must follow the manner and timeline specified** by the appropriate government.
- For **accidents causing death in plantations, construction, or other establishments**:
 - ✓ Inquiry must be conducted within two months of notice submission.
 - ✓ If no authority is designated, the Chief Inspector-cum-Facilitator ensures the Inspector-cum-Facilitator conducts the inquiry.
 - ✓ Inquiry investigates accident circumstances and collects relevant information.

DUTIES OF EMPLOYEES SECTION 13

- **Employee shall:**
 - ✓ Take *reasonable care of their own health and safety* as well as that of others who may be affected by their actions or inactions at the workplace.
 - ✓ *Comply with safety and health requirements* outlined in the applicable standards.
 - ✓ *Cooperate with their employer* to help meet statutory obligations under this Code.
 - ✓ *Promptly report any unsafe or unhealthy situation* to their employer, health and safety representative, or designated workplace official, as applicable.
 - ✓ *Not willfully interfere with, misuse, or neglect* any equipment or facilities provided for workplace health, safety, and welfare.
 - ✓ *Avoid willful actions or omissions* that could endanger themselves or others without reasonable cause.
 - ✓ *Perform any additional duties* prescribed by the appropriate Government.

RIGHTS OF EMPLOYEE SECTION 14

- Employees have the right to **ask their employer for information about their health and safety at work**.
- Employees **can report concerns about inadequate safety measures or health risks to their employer or through a Safety Committee**, if available.

- If **unresolved**, employees can **approach the Inspector-cum-Facilitator, a designated authority** for addressing workplace safety issues.
- If an employee **reasonably believes there is an imminent risk of serious injury, death, or danger to health, they can notify their employer** directly or through a Safety Committee member and simultaneously inform the Inspector-cum-Facilitator.
- Employers or employees **must take immediate action if the concern about imminent danger is valid and report the action** taken to the Inspector-cum-Facilitator.
- If the **employer disagrees with the employee's concern about imminent danger**, they must still refer the matter to the Inspector-cum-Facilitator without delay.

NATIONAL OCCUPATIONAL SAFETY AND HEALTH ADVISORY BOARD SECTION 16

- **The Central Government will establish the National Occupational Safety and Health Advisory Board (NOSHAB)** to perform functions under this Code and provide advice on:
 - ✓ Standards, rules, and regulations under the Code.
 - ✓ Implementation of the Code and related regulations.
 - ✓ Policy and program issues regarding occupational safety and health.
 - ✓ Any other matters referred by the Central Government.
- The Central Government may constitute technical committees or advisory committees to assist the NOSHAB in discharge of its function.
- **NOSHAB shall consist of:**
 - ✓ Secretary, Ministry of Labour and Employment (Chairperson ex officio).
 - ✓ Director General, Factory Advice Service and Labour Institutes, Mumbai (Member ex officio).
 - ✓ Director General, Mines Safety, Dhanbad (Member ex officio).
 - ✓ Chief Controller of Explosives, Nagpur (Member ex officio).
 - ✓ Chairman, Central Pollution Control Board, New Delhi (Member ex officio).
 - ✓ Chief Labour Commissioner (Central), New Delhi (Member ex officio).
 - ✓ Principal Secretaries of Labour from four States (by rotation, 3-year tenure).
 - ✓ Director General, Employee's State Insurance Corporation, New Delhi (Member ex officio).
 - ✓ Director General, Health Services, New Delhi (Member ex officio).
 - ✓ Five representatives of employers (3-year tenure).
 - ✓ Five representatives of employees (3-year tenure).
 - ✓ One representative of a professional body involved in standards, rules, or policy-making (3-year tenure).
 - ✓ Five eminent persons or representatives from reputed research institutions in occupational safety and health (3-year tenure).
 - ✓ Special invitees from State or Union Territory Governments for specific inputs on matters related to predominant industries or sectors.
 - ✓ Joint Secretary, Ministry of Labour and Employment (Member Secretary ex officio).

STATE OCCUPATIONAL SAFETY AND HEALTH ADVISORY BOARD SECTION 17

- The **State Government shall establish the State Occupational Safety and Health Advisory Board (SOSHAB)** to advise on matters related to the administration of the Code.
- The State Government **can form technical or advisory committees** under SOSHAB, including site appraisal committees, to assist in responsibilities specific to their jurisdictions.

OCCUPATIONAL SAFETY AND HEALTH STANDARDS SECTION 18

- The **Central Government sets occupational safety and health standards for workplaces** like factories, mines, dock work, beedi and cigar production, construction sites, and similar environments.
- **Standards address** physical, chemical, biological, and other hazards to prevent health impairment or loss of functional capacity during employees' working lives.
- **Norms include:**
 - ✓ Identifying hazards and symptoms for employees and users exposed to them.
 - ✓ Ensuring proper treatment, safe usage conditions, and exposure precautions.
 - ✓ Monitoring and measuring employees' exposure to hazards.
 - ✓ Providing employer-funded medical exams and tests for exposed employees.
 - ✓ Conducting hazard evaluation procedures like safety audits and hazard analyses.
- **Medical examinations for detecting and reporting occupational diseases** are extended to employees even after employment if the disease arises from their work.
- The Central Government determines necessary safety and health measures **based on designated authority reports and workplace-specific conditions**.
- Standards cover aspects listed in the **Second Schedule to the Code**.
- The **Central Government can amend the Second Schedule after a minimum of 45 days' notice**, following recommendations from NOSHAB.

SAFETY AND OCCUPATIONAL HEALTH SURVEYS SECTION 20

- During working hours or as necessary, **authorized authorities may conduct surveys** in factories, mines, or other establishments. **Authorities include:**
 - ✓ Chief Inspector-cum-Facilitator in the case of factory or mine, or
 - ✓ Director General of Factory Advice Service and Labour Institute in the case of factory; or
 - ✓ the Director General of Mines Safety in the case of mine; or
 - ✓ the Director General of Health Services in the case of factory or mine; or
 - ✓ such other officer as may be authorised by the appropriate Government in the case of any other establishment or class of establishments,
- Employers will **receive prior written notice before the survey** is conducted and **must provide facilities** for testing machinery, collecting samples, and gathering relevant data.
- Workers may **be required to undergo medical examinations and provide relevant information** during surveys.
- **Time spent by workers on such activities will be treated as working hours** for wage and overtime calculations.